

SERVICE LEVEL AGREEMENT

Attention: XX

Dear Sir/Madam,

RE: Implementation of the E-Invoicing Solution in compliance with FIRS Mandate

Thank you for choosing Ernst & Young (“we” or “EY”) to perform professional services (the “Services”) for XXXXX (“you” or “Client”). We appreciate the opportunity to assist you and look forward to working with you.

The attached Statement of Work describes the scope of Services and other additional arrangements. The Services will be subject to the terms and conditions of this letter (“**Letter**”), together with its attachments, including the General Terms and Conditions, the applicable Statement of Work and any other Appendices which together constitute and form part of this Service Level Agreement (“**Agreement**”).

Processing of Client Information

EY, the other EY Firms and our respective service providers may process client information obtained in connection with services performed for you, for benchmarking, research, thought leadership and related purposes, and to enhance the services we provide to you and other clients, provided that we do not identify you or any individuals related to you, or otherwise refer to you, in connection with these matters. In all such matters, we will comply with applicable law (including the applicable Data Protection Legislations and professional obligations).

Participation Disclaimer

You acknowledge and accept that our participation in delivering services set out in this Agreement, to you is subject to our understanding that we have been selected to provide these services through a fair, open, transparent and competitive process, consistent with (i) the standard business practices and policies of your organization, (ii) any laws regulating the bidding and selection process of work which has gone out to tender, and (iii) that there are no deviations, discrepancies or otherwise irregularities in the process under which you have chosen us to provide the applicable services. You represent and warrant all relevant laws and policies (both your internal policies and external policies prescribed by any regulator or supervising body) governing procurement and expenditure have been and shall continue to be complied with the term of this Agreement.

You warrant and represent that you shall immediately notify us of any transgression or irregularity in your expenditure or procurement processes, to the extent that such a transgression or irregularity has in anyway connected to your selection of us to provide the applicable services to you. Insofar and to the greatest extent possible, you shall also assist us in mitigating any reputational harm or damage through your failure to disclose the aforesaid transgressions or irregularities.

Appendix A

Statement of work

This Statement of Work dated (XX, XXX, 202X) (this “SOW”), is made between Ernst & Young (“EY”) and the (“Client”).

Except as otherwise set forth in this SOW, this SOW incorporates by reference, and is deemed to be a part of, the Agreement. The additional terms and conditions of this SOW shall apply only to the advisory Services covered by this SOW and not to Services covered by any other Statement of Work pursuant to the Agreement. Capitalized terms used, but not otherwise defined, in this SOW shall have the meanings in the Agreement, and references in the Agreement to “you” or “Client” shall be deemed references to you.

Scope of Services

The scope of our services will cover the following activities:

- ▶ Assess the current invoicing systems and processes against FIRS e-Invoicing requirements to identify compliance gaps and areas of improvement.
- ▶ Map invoice data fields to the prescribed UBL/XML standards and design integration workflows with the FIRS Merchant Buyer Solution (MBS) platform or accredited Access Point Providers (APPs).
- ▶ Develop and implement secure integration solutions (API) to enable automated submission, clearance, and reconciliation of e-Invoices.
- ▶ Conduct end-to-end testing in sandbox and production environments to validate compliance with IRN and cryptographic stamping requirements.
- ▶ Deliver training and awareness sessions for Finance, IT, and Operations teams to ensure smooth adoption of the e-Invoicing **solution**.
- ▶ Provide technical documentation, process guides, and change management support to embed compliance and operational efficiency into day-to-day business practices.

Scope Exclusions

Any services not expressly outlined in the scope of services section of this engagement letter are hereby excluded.

Assumptions & Dependencies

Category	Key Assumptions & Dependencies
General	✦ Client will provide the project team with adequate workspace for the Project duration (as required based on the preferred mode of delivery). ✦ Client will be responsible for supporting all requested meetings (Kick-off, ad-hoc meetings, interim status and final review of deliverables) ✦ Client will ensure availability of other relevant stakeholders at various points in the program as required
Scope	✦ Scope for the project is limited to the implementation of the E-Invoicing solution. ✦ Any extension beyond agreed implementation duration as a result of Client delay to requests for project requirements will be treated as a Change Request
Governance	✦ Client will appoint a program Manager who will be responsible for the project's delivery alongside EY's Project Manager
Resources	✦ Client will ensure the availability of other relevant stakeholders at various points in the project as required ✦ Client will assign resources as required to the implementation. The assigned personnel will be available from Day 1 and should have an initial understanding across the relevant areas ✦ Client will provide the resources required for the training. If the Company requests resources from EY to augment its resources or to further increase the scope, this will be treated as a Change Request
Fees	✦ Our professional fee for this engagement is quoted as a fixed fee rate which will apply for the duration of the engagement. Our fee is billed as a whole sum at the start of the engagement. Our professional fee is exclusive of expenses and value added tax
Escalation and Communication	✦ Client will nominate individuals at the appropriate level across relevant business functions to participate in the engagement. ✦ All project communication or issues regarding the engagement would be directed to the point of contact nominated by Client. ✦ The escalation points for the project are as follows: ○ Client Project Manager ○ Project Team ○ Official Points of Contact ○ Project Sponsor

Project Governance

The project will be under the overall supervision of EY Tax Partner and Technology Consulting Partner, They will receive support from experienced managers in our Tax & Technology Group. To achieve the desired results, it is essential to work collaboratively and interactively with Client. Therefore, on the side of Client, implementation will be under the overall sponsorship and direction of the Project Sponsor. Additionally, we will require a contact person from Client IT to work within the project management office. This is crucial to provide proper context to activities undertaken and

to facilitate the transfer of skills and capabilities to the Company.

Project Schedule

EY will provide the Services as outlined in this agreement and according to professional standards, within the agreed time frame. Unless specified otherwise in the Agreement's General Terms and Conditions, project delivery is scheduled for 4 weeks.

Limitations on scope

We will not identify, address, or correct any errors or defects in your computer systems, other devices, or components thereof ("Systems"), whether or not due to imprecise or ambiguous entry, storage, interpretation, processing, or reporting of data. We will not be responsible for any defect or problem arising out of or related to data processing in any Systems. We will not deliver any service not specifically mentioned in this engagement letter. This engagement is limited to implementing the E-Invoicing solution to Client. The EY team will work primarily remotely and onsite at a Client designated office in Lagos where required.

Your specific obligations

- ▶ You will provide reasonable and timely access to the appropriate personnel for discussions and the exchange of information and encourage stakeholder engagement and meeting participation.
- ▶ You will provide the required resources to EY in line with the Agreement that will ensure that the project proceeds according to management expectations, including all the relevant data and information requested by EY to ensure efficient running of the project.
- ▶ You will assign at least one ("Client") IT employee to support the implementation. The assigned personnel will be available from Day 1. The recommended profile of the required staff will be shared with Client ahead of the project kick-off meeting.

Specific additional terms and conditions

Given the nature of the work we are providing (i.e. Consulting Services), the nature of this work does not constitute an Audit (i.e. Forensic or Statutory), review or assurance carried out in accordance with the international standards on auditing as promulgated by the International Audit and Assurance Standards Board (the "IAASB"). Our work will not be performed in accordance with generally accepted auditing, review, or other assurance standards in Nigeria and accordingly does not express any form of assurance. None of the Services or any Reports will constitute any legal opinion or advice. We will not conduct a review to detect fraud or illegal acts.

Notwithstanding anything to the contrary in the Agreement or this SOW, we do not assume any responsibility for any third-party products, programs or services, their performance or compliance with your specifications or otherwise, except for third parties acting on our behalf.

We have based any comments or recommendations as to the functional or technical capabilities of any products in use or being considered by you solely on information provided directly or through you. We are not responsible for the completeness or accuracy of any such information or for confirming any of it.

We will exercise reasonable care but shall not be responsible for Client environment failures, third-party service failures and Client erroneous or unauthorized system manipulation.

Client Support and Service Availability

1. Covered Under Support

The following services are encompassed within EY's support services under the E-Invoice Solution Agreement:

- 1.1. Minor Updates and Enhancements
 - ▶ Minor UI improvements without altering core business logic
 - ▶ Minor rule/regulation update adjustments
 - ▶ Routine database maintenance and optimization
 - ▶ Fixes to existing functionalities
 - ▶ System performance monitoring and tuning
 - ▶ Second-level user support for usage queries
 - ▶ Continuous feedback monitoring and improvement recommendations
- 1.2. Security Patches
 - ▶ Periodic security updates and vulnerability patches
 - ▶ Remediating risks not requiring major redevelopment
- 1.3. System Health Checks
 - ▶ Routine application health assessments
 - ▶ Backup verification and data integrity assurance
- 1.4. User Training & Documentation
 - ▶ Updated user documentation/manuals accessible online
 - ▶ Remote/online guided training sessions for users

2. Service Levels

Service Category	Service Levels Commitment
Issue acknowledgment	Within 2 business hours
Resolution for minor issues (that does not impact invoice data transmission)	Within 1-3 business days
Major incident / system outage / Invoice data transmission	▶ Initial response time: 30 mins to 1 hour ▶ Resolution Time (if fixable): 2 hours to 8 hours
Security vulnerabilities	Patch deployment within agreed window
Documentation updates	Within 10 business days of release
Scheduled maintenance notice	Minimum 3 business days' notice

3. Incident Severity Classification

Priority	Definition
P1 - Critical	System down, business-critical failure/ invoice transmission issues
P2 - High	Major functionality impaired
P3 - Medium	Feature works with errors
P4 - Low	Cosmetic or informational issues

4. Support Channels

- ▶ Email: tomiwa.adebokun@ng.ey.com
- ▶ Telephone: 09168633835
- ▶ Remote troubleshooting (Teams / Zoom / RDP)
- ▶ Quarterly performance and feedback review workshops

Withholding tax

You shall immediately remit to the appropriate tax authorities Withholding Tax (WHT) deducted from our invoices and furnish us with evidence of remittance within 30 days of your payment of our invoice. For the avoidance of doubt, the appropriate tax authority for the purposes of this Agreement is the Lagos State Internal Revenue Service.

We reserve the right to inform the appropriate tax authority, when filing our tax returns and those of our Partners as well as during the settlement with the tax authority of the associated income tax liability, about the non-receipt from you of evidence of your remittance of the relevant WHT.

GENERAL TERMS AND CONDITIONS

Structure

1. These General Terms and Conditions, together with the Cover Letter and any applicable Statement of Work and any annexes, form the contractual structure for the provision of Services by EY to Client.
2. For the purposes of this Agreement, "party" means either EY or Client.
3. If there is any inconsistency between provisions in different parts of this Agreement, those parts shall have precedence as follows (unless expressly agreed otherwise): (a) the Cover Letter, (b) the applicable Statement of Work and any annexes thereto, (c) these General Terms and Conditions, and (d) other annexes to this Agreement.

Definitions

4. Capitalized terms used but not otherwise defined herein shall have the meanings given to them in the Cover Letter or applicable Statement of Work. The following terms are defined as specified below:
 - (a) "Agreement" means the Cover Letter together with the General Terms and Conditions, as well as any Statement of Work or Module issued thereunder.
 - (b) "Client" means the counter party identified in the Cover Letter, to which EY will render Services on behalf of itself and on behalf of its affiliated entities listed in Appendix 2.
 - (c) "Client Affiliate" means an entity that controls, is controlled by, or is under common control with, Client, specifically including those entities listed in Appendix 2.
 - (d) "Client Information" means information obtained by EY from Client or from a third party on Client's behalf.
 - (e) "Cover Letter" means the letter prepared by EY, which described the nature of the Services and to which these General Terms and Conditions are attached.
 - (f) "Data controller" in relation to personal data means a controller as defined in the NDPA and shall be construed to include a reference to the data controller in terms of the GDPR.
 - (g) "Data processor" in relation to personal data means a Data Administrator as defined in the NDPA and shall be construed to include a reference to data processor in terms of the GDPR.
 - (h) "Deliverables" means any advice, communications, information, technology or other content that EY provides under this Agreement.
 - (i) "Effective Date" means the date of signature of the Cover Letter.
 - (j) "EY Firm" means a member of the EY network and any entity operating under a common branding arrangement with a member of the EY network.
 - (k) "EY Persons" means EY's or any other EY Firm's subcontractors, members, shareholders, directors, officers, partners, principals or employees.
 - (l) "GDPR" means the General Data Protection Regulation (EU) 2016/ 679.
 - (m) "Internal Support Services" means internal support services utilized by EY, including but not limited to: (a) administrative support, (b) accounting and finance support, (c) network coordination, (d) IT functions including business applications, system management, and data security, storage and recovery, and (e) conflict checking, risk management and quality reviews.
 - (n) "Module" means a module, supplemental to this Agreement, entered into by the parties and containing further terms applicable to a particular type of Services.

- (o) "NDPA" means the Nigerian Data Protection Act, 2023.
- (p) "Personal Data" means data about an individual who can be identified from the data, or from the data or other information in the possession of, or likely to come into the possession of the data controller.
- (q) "Report" means a Deliverable (or any portion of a Deliverable) issued on EY letterhead or under the EY brand or otherwise identifiable as being prepared by or in association with EY, any other EY Firm or EY Person.
- (r) "Services" means the services to be provided by EY as described in the Cover Letter.
- (s) "Statement of Work" means a document, incorporating these General Terms and Conditions and any applicable Module, entered into by the parties describing particular Services that EY will perform.
- (t) "Support Providers" means external service providers of EY and other EY Firms and their respective subcontractors.
- (u) "Tax Advice" means tax matters, including tax advice, tax opinions, tax returns or the tax treatment or tax structure of any transaction to which the Services relate.

Provision of the Services

- 5. EY will provide the Services using reasonable skill and care.
- 6. EY may subcontract a portion of the Services to one or more EY Firms, as well as to other third parties, who may deal with Client directly. EY will remain solely responsible to Client for the performance of the Services.
- 7. EY will act as an independent contractor and not as Client's employee, agent or partner. Client will remain solely responsible for management decisions relating to the Services and for determining whether the Services are appropriate for its purposes. Client shall assign qualified personnel to oversee the Services as well as the use and implementation of the Services and Deliverables.
- 8. Client agrees to promptly provide to EY (or cause others to so provide) Client Information, resources and assistance (including access to records, systems, premises and people) that EY reasonably requires to perform the Services.
- 9. Client Information will be accurate and complete in all material respects. EY will rely on Client Information, and, unless EY expressly agrees otherwise in writing, EY will have no responsibility to verify it. The provision of Client Information (including Personal Data), resources and assistance to EY will be in accordance with applicable law and will not infringe any copyright or other third-party rights.

Deliverables

- 10. All Deliverables are intended for Client's use in accordance with the applicable Statement of Work under which they are provided.
- 11. Client shall not rely on, and EY shall have no liability for: (i) any advice or information provided orally (including where recorded or transcribed), unless otherwise expressly agreed in the applicable Statement of Work; or (ii) any draft Deliverable. EY shall not be required to update any final Deliverable as a result of circumstance of which EY becomes aware, or events occurring, after its delivery.
- 12. Unless otherwise provided for in a Statement of Work, Client may not disclose a Report (or any portion or summary of a Report), or refer to EY or to any other EY Firm or EY Person in connection with the Services, except:
 - (a) to Client Affiliates (subject to these disclosure restrictions);
 - (b) to Client's lawyers (subject to these disclosure restrictions), who may review it only in connection with advice relating to the Services;

- (c) to Client's statutory auditors (subject to these disclosure restrictions) who may review it only in connection with their audit;
- (d) to the extent, and for the purposes, required by applicable law (and Client will promptly notify EY of such legal requirement to the extent Client is permitted to do so);
- (e) to other persons (with EY's prior written consent), who may use it only as specified in such consent; or
- (f) to the extent it contains Tax Advice.

If Client discloses a Report (or a portion thereof), Client shall not alter, edit or modify it from the form provided by EY. Client shall inform those to whom it discloses a Report (other than disclosure of Tax Advice to tax authorities) that they may not rely on it for any purpose without EY's prior written consent. Subject to the foregoing, Client is not prohibited by this Section 12 from using Deliverables that do not qualify as Reports in communication with third parties provided that: (i) there is no reference to, or communication of, EY's or any other EY Firm's involvement in the development of such Deliverables, and (ii) Client assumes sole responsibility for such use and communication.

Limitations

13. As part of the parties' arrangements, the parties have mutually agreed the following limitations of liability (which also apply to others for whom Services are provided under this Agreement):

- (a) Neither party will be responsible for any amount with respect to loss of profit, pure economic loss, loss of income, data or goodwill, or any other consequential, incidental, indirect, exemplary, punitive or special damages in connection with claims arising out of this Agreement or otherwise relating to the Services, whether or not the likelihood of such loss or damage was contemplated.

- (b) Client (and any others for whom Services are provided) may not recover from EY, in contract or tort, under statute or otherwise, aggregate damages in excess of one (1) time the fees actually paid for the Services under the respective Contract during the twelve months preceding the date Client was aware of, or should have been aware of, the relevant claim. This cap is an aggregate cap across all claims under the respective Statement of Work.

- (c) If EY is liable to Client (or to any others for whom Services are provided) under this Agreement or otherwise in connection with the Services, for loss or damage to which any other persons have also contributed, EY's liability to Client shall be several, and not joint, with such others, and shall be limited to EY's proportionate share of that total loss or damage, based on EY's contribution to the loss and damage relative to the others' contributions. No exclusion or limitation on the liability of other responsible persons imposed or agreed at any time shall affect any assessment of EY's proportionate liability hereunder, nor shall settlement of or difficulty enforcing any claim, or the death, dissolution or insolvency of any such other responsible persons or their ceasing to be liable for the loss or damage or any portion thereof, affect any such assessment.

- (d) Client shall make any claim relating to the Services or otherwise under this Agreement no later than twelve (12) months from the date of the act or omission alleged to have given rise to the claim.

14. The limitations set out in Sections 13(b) above will not apply to losses or damages caused by EY's fraud or willful misconduct or to the extent prohibited by applicable law or professional regulations.

15. Client (and any others for whom Services are provided under this Agreement) may not make a claim or bring proceedings relating to the Services or otherwise under this

Agreement against any other EY Firm or EY Person. Client shall make any claim or bring proceedings only against EY.

No Responsibility to Third Parties

16. Unless specifically otherwise agreed with Client in writing, EY's responsibility for performance of the Services is to Client and Client alone. Should any Deliverable be disclosed, or otherwise made available, by or through Client (or at Client's request) to a third party (including but not limited to permitted disclosures to third parties under Section 12), Client agrees to indemnify EY, as well as the other EY Firms and the EY Persons, against all claims by third parties, and resulting liabilities, losses, damages, costs and expenses (including reasonable external and internal legal costs) arising out of such disclosure.

Intellectual Property Rights

17. Each party retains its rights in its pre-existing intellectual property. Except as set out in the applicable Statement of Work, any intellectual property developed by EY, and any working papers compiled in connection with the Services (but not Client Information contained in them), shall be the property of EY.
18. Client's right to use Deliverables under this Agreement arises following payment for the Services.

Confidentiality, Data Protection & Security

19. Except as otherwise permitted by this Agreement, neither party may disclose to third parties any information (other than Tax Advice) provided by or on behalf of the other that ought reasonably to be treated as confidential (including, in the case of EY, Client Information). Either party may, however, disclose such information to the extent that it:
- (a) is or becomes public other than through a breach of this Agreement;
 - (b) is subsequently received by the recipient from a third party who, to the recipient's knowledge, owes no obligation of

confidentiality to the disclosing party with respect to that information;

- (c) was known to the recipient at the time of disclosure or is thereafter created independently;
 - (d) is disclosed as necessary to enforce the recipient's rights under this Agreement; or
 - (e) must be disclosed under applicable law, legal process or professional regulations.
20. EY uses other EY Firms, EY Persons and Support Providers who may have access to Client Information in connection with delivery of Services as well as to provide Internal Support Services. EY shall be responsible for any use or disclosure of Client Information by other EY Firms, EY Persons or Support Providers to the same extent as if EY had engaged in the conduct itself.
21. Client agrees that Client Information, including Personal Data, may be processed by EY, other EY Firms, EY Persons and their Support Providers in various jurisdictions in which they operate (EY office locations are listed at www.ey.com). Client Information, including any Personal Data, will be processed in accordance with applicable law, and appropriate technical and organizational security measures will be implemented to protect it. Transfer of Personal Data among members of the EY network is subject to the EY Binding Corporate Rules Program available at www.ey.com/bcr. Further information about EY's security measures and processing of Personal Data is available at www.ey.com/privacy.
22. As a professional services firm, EY is required to exercise its own judgment in determining the purposes and means of processing any Personal Data when providing the Services. Accordingly, unless otherwise specified, when processing Personal Data subject to NDPA, the GDPR or other applicable data protection law, EY acts as an independent controller, and not as a processor under Client's control or as a joint controller with Client. For Services where EY acts as a data processor processing Personal Data on

Client's behalf, Appendix 1 of the Agreement shall apply.

23. EY and other EY Firms may retain and use Client Information for benchmarking, analytics, research and development, thought leadership and related purposes, and to enhance their services, provided that any use does not externally identify, or make reference to, Client. In all such matters, EY and other EY Firms will comply with applicable law and professional obligations.
24. If Client requires EY to access or use Client or third-party systems or devices, EY shall have no responsibility for the confidentiality, security or data protection controls of such systems or devices, or for their performance or compliance with Client requirements or applicable law.
25. To facilitate the performance of the Services, EY may provide access to, or otherwise make available, technology-enabled collaboration tools and platforms to Client personnel or third parties acting on Client's behalf or at Client's request. Client shall be responsible for all such persons' compliance with the terms applicable to the use of such tools and platforms.

Compliance

26. In connection with the performance of its respective rights and obligations under this Agreement, EY and Client each will comply with all laws and regulations of any jurisdiction applicable to it from time to time concerning or relating to (i) bribery or corruption; or (ii) economic or financial sanctions, export controls, trade embargoes or other similar prohibitions or restrictions imposed by a government authority having jurisdiction over such party. Client represents that it shall not use the Services to circumvent, or facilitate any violation or, any such law or regulation.

Fees and Expenses Generally

27. Client shall pay EY's professional fees and specific expenses in connection with the Services as detailed in the applicable Statement of Work. Client shall also reimburse EY for other reasonable expenses

incurred in performing the Services. EY's fees are exclusive of taxes or similar charges, as well as customs, duties or tariffs imposed in respect of the Services, all of which Client shall pay (other than taxes imposed on EY's income generally). Unless otherwise set forth in the applicable Statement of Work, payment is due within thirty (30) days following the date of each of EY's invoices.

28. EY may charge additional professional fees if events beyond its control (including Client's acts or omissions) affect EY's ability to perform the Services as agreed in the applicable Statement of Work or if Client asks EY to perform additional tasks.
29. If EY is required by applicable law, legal process or government action to produce information or personnel as witnesses with respect to the Services or this Agreement, Client shall reimburse EY for any professional time and expenses (including reasonable external and internal legal costs) incurred to respond to the request, unless EY is a party to the proceeding or the subject of the investigation.

Force Majeure

30. Neither party shall be liable for breach of this Agreement (other than payment obligations) caused by circumstances beyond such party's reasonable control.
31. To the extent that the provision of the Services is impacted by a pandemic (including COVID-19) and any reasonable concerns or measures taken to protect the health and safety interests of either party's personnel, the parties will work together to amend the Agreement to provide for the Services to be delivered in an appropriate manner, including any resulting modifications with respect to the timelines, location, or manner of the delivery of Services.
32. EY will use reasonable efforts to provide the Services on-site at the Client's offices, provided that, in light of a pandemic the parties agree to cooperate to allow for remote working and/or an extended timeframe to the extent (i) any government or similar entity implements restrictions that may interfere

with provision of onsite Services, or (ii) either party implements voluntary limitations on travel or meetings that could interfere with provision of onsite Services[, or (iii) an EY resource determines that he or she is unable or unwilling to travel in light of a pandemic-related risk.

Term and Termination

33. This Agreement applies to all Services whenever performed (including before the date of this Agreement or the applicable Statement of Work).
34. This Agreement shall terminate on the completion of the Services. Either party may terminate this Agreement, or any particular Services, upon 30 (thirty) days' prior written notice to the other. In addition, EY may terminate this Agreement, or any particular Services, immediately upon written notice to Client if EY reasonably determines that it can no longer provide the Services in accordance with applicable law (including but not limited to the laws and regulations referred to in clause 26) or professional obligations.
35. Client shall pay EY for all work-in-progress, Services already performed, and expenses incurred by EY up to and including the effective date of the termination or expiration of this Agreement, as well as any applicable termination fees set forth in the applicable Statement of Work.
36. The term of this Agreement will expire after three (3) years (the "Term"), unless the parties mutually agree to renew or extend it. For clarity, this Agreement shall survive with respect to any Statement of Work entered into during the Term, even if such Statement of Work remains in effect beyond the Term.

Governing Law and Dispute Resolution

37. This Agreement, and any non-contractual matters or obligations arising out of it or the Services, shall be governed by, and construed in accordance with, the laws of the Federal Republic of Nigeria.
38. Any dispute relating to this Agreement, Statement of Work, or the Services shall be

subject to the exclusive jurisdiction of the Nigerian courts, to which each party agrees to submit for these purposes. The parties may by agreement refer any dispute hereunder to arbitration in accordance with the rules and provisions of the Arbitration and Mediation Act, 2023.

Miscellaneous

39. This Agreement constitutes the entire agreement between the parties as to the Services and the other matters it covers, and supersedes all prior agreements, understandings and representations with respect thereto, including any previously agreed confidentiality agreements.
40. Each party may execute this Agreement, as well as any modifications to it, by electronic means, and each party may sign a different copy of the same document. Both parties must agree in writing to modify this Agreement.
41. Client agrees that EY and the other EY Firms may, subject to professional obligations, act for other clients, including Client's competitors.
42. Neither party may assign any of its rights, obligations or claims under this Agreement in whole or in part without the prior written consent of the other party; provided, however, that EY may assign or novate any of its rights and obligations under this Agreement in whole or in part to (i) any other EY Firm and/or (ii) any entity acquiring, resulting from, or established as part of, a restructuring, sale or transfer of an EY Firm, in whole or part. In order to facilitate the continuity of the Services, EY may also provide such entity with a copy of the data associated with this Agreement, including Client Information, which shall be used as reasonably necessary in connection with the exercise of its rights under this clause. EY shall provide Client with notice of any such assignment or novation.
43. If any provision of this Agreement (in whole or part) is held to be illegal, invalid or otherwise unenforceable, the other provisions shall remain in full force and effect.

44. Client acknowledges that the U.S. Securities and Exchange Commission regulations indicate that, where auditor independence is required, certain confidentiality restrictions related to tax structure may render the auditor to be deemed to be non-independent or may require specific tax disclosures. Accordingly, if and only to the extent that U.S. Securities and Exchange Commission auditor independence regulations apply to the relationship between Client or any of Client's associated entities and any EY Firm, with respect to the tax treatment or tax structure of any transaction to which the Services relate, Client represents, to the best of its knowledge, as of the date of this Agreement, that neither Client nor any of its affiliates has agreed, either orally or in writing, with any other advisor to restrict Client's ability to disclose to anyone such tax treatment or tax structure. Client agrees that the impact of any such agreement is its responsibility.
45. EY and Client acknowledge that Client or a Client Affiliate (the "Local Client") may seek to enter into an agreement with another EY Firm (the "Local EY Firm") for the provision of services in another country (the "Local Services"). The parties agree that the Local Client and the Local EY Firm may enter into a local country agreement (the "Local Agreement") for Local Services that incorporates the terms and conditions of this Agreement, subject to any modifications they deem appropriate under local law, regulation, professional standard, or local custom and practice. For clarity, in such event, (i) the Local Agreement shall govern all Local Services; and (ii) neither the Local Client nor the Local EY Firm will be deemed to be parties to this Agreement in connection with the Local Services.
46. Neither party may use or reference the other's name, logos or trademarks without its prior written consent, provided that EY may use Client's name publicly to identify Client as a client in connection with specific Services or otherwise.
47. The limitations in Sections 13 and 15 and the provisions of Sections 16, 21, 23 and 41 are intended to benefit the other EY Firms and all EY Persons, who shall be entitled to enforce them.

APPENDIX 1 – DATA PROCESSING AGREEMENT

For purposes of clause 22 of the General Terms and Conditions, the following conditions shall apply in the event that EY is acting as a data processor on behalf of the Client:

The processing purpose, category of data, and nature of Personal Data collected shall be reasonably included in the relevant Statement of Work.

DATA PROCESSOR AGREEMENT

This Agreement (hereinafter called the “**Data Processing Agreement**”) has been entered into by:

1. the Client, who shall for the purposes of this Data Processing Agreement be referred to as “**Controller**”,

and

2. Ernst and Young of 10th and 13th Floors, UBA House, Marina, Lagos who shall for the purposes of this Data Processing Agreement be regarded as the “**Processor**” or “**EY**”,

Hereinafter jointly called the “**Parties**” and separately the “**Party**”,

WHEREAS:

- A. In instances where EY acts as a processor, this Data Processing Agreement will be applicable and any terms that may have been referenced in this Data Processing Agreement, and which have not been defined, shall bear the meanings provided in the Agreement.
- B. EY shall perform the services as described in the Agreement or any applicable Statement of Work or Module entered into by EY and the Client.
- C. In this Agreement, Data Protection Law refers to the Nigerian Data Protection Act, 2023 (hereinafter “**NDPA**”) and Regulation 2016/679 of the European Parliament and of the Council on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter “**Regulation**”). In this Data Processing Agreement the terms “**Data Subjects**”, “**Personal Data**”, “**Process**” or “**Processing**”, “**special categories of Personal Data**”, “**Personal Data Breach**” and “**Supervisory Authority**” have the meaning as defined in the NDPA and the Regulation. For purposes of this Data Processing Agreement, a “**Controller**” shall refer to a “**data controller**”, and a “**Processor**” shall refer to a “**data processor**”.
- D. In the course of the provision of services, EY will Process Personal Data on the instructions of and for the benefit of the Client. In the context of that Processing of Personal Data, Client shall be deemed to be a Controller and EY to be a Processor. For the avoidance of doubt, Parties have agreed that EY may, if necessary, also Process Personal Data for certain internal processes, such as safeguarding compliance with regulatory and legal obligations to which EY is subject, conflict checking, risk management and quality reviews and EY’s internal financial accounting, information technology and other administrative support services. These Processing Purposes for which EY is acting as a Controller in its own right are not subject to this Data Processing Agreement.

- E. Client – in addition to the provisions of the SoW - wishes to record in writing certain additional safeguards in respect of the Processing of Personal Data by EY in the context of EY providing services to Client.

HAVE AGREED ON THE FOLLOWING:

1. EY and Client shall comply with applicable Data Protection Law. Before providing Personal Data to the Processor or giving EY instructions to access and further Process the Personal Data, Client as the Controller, shall ascertain that such Processing is legitimate pursuant to section 25 of the NDPA and Article 6 of the Regulation.
2. The subject-matter, nature and purpose of the data processing are included in this Data Processing Agreement.
3. EY shall keep confidential the Personal Data that it processes on behalf of Client and shall ensure that anyone acting under its authority keeps Personal Data confidential, unless it is required by law or professional regulations to disclose them. It shall Process those Personal Data only on the documented instructions of Client, including with regard to transfers of personal data outside of Nigeria or the European Economic Area ("EEA"), unless it is required to Process Personal Data under applicable law. In that case, EY shall inform the Controller of that legal requirement before Processing the Personal Data, unless applicable law prohibits such information.
4. EY shall inform Client if it believes an instruction constitutes an infringement of applicable law and regulations, including Data Protection Laws.
5. (a) Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of processing as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, EY shall implement appropriate technical and organizational measures as described herein to ensure a level of security appropriate to the risk. The measures must also be aimed at preventing the unnecessary collection and further Processing of Personal Data.
(b) EY shall periodically evaluate and strengthen, supplement or improve the measures it has implemented insofar as requirements or (technological) developments prompt it to do so.
6. (a) EY shall give Client the opportunity periodically to check compliance with this Agreement and the statutory provisions applicable to the Processing of Personal Data. The checks may be carried out on behalf of the Client by an (external) independent auditor unless that auditor is a direct competitor of EY. That periodic check shall be limited to EY's answering questions put by the Client (a maximum of once a year) about EY's compliance with applicable Data Protection Law and, where necessary, Client's being allowed to interview an EY IT employee or EY IT employees at an EY premise.

(b) Once a year, EY shall arrange for an independent auditor to conduct a SOC 1 and SOC 2 audit in respect of the security measures implemented by EY. At the written request of the Client, EY shall make available its most recent SOC 1 and SOC 2 reports, or any other report based on comparable or stricter standards.

(c) Having regard to EY's duty of confidentiality towards other clients, Client accepts and acknowledges that EY shall not allow Client, or an auditor mandated by Client, to access its IT systems and/or its IT infrastructure.

7. EY shall inform Client:
- i) of any Personal Data Breach that must be notified pursuant to Sections 40 of the NDPA and Articles 33 and 34 of the Regulation. EY shall inform Controller without undue delay and to the extent reasonably possible, within 72 hours after becoming aware of the Personal Data Breach;
 - ii) of complaints from Data Subjects whose Personal Data are being Processed by EY;
 - iii) of requests from Data Subjects whose Personal Data are being Processed by EY regarding the exercise of their data protection rights under the NDPA and the Regulation; and
 - iv) of an audit by a Supervisory Authority or other competent authority where such is permitted pursuant to the applicable law and regulations.
8. EY shall provide Client with reasonable assistance requested by Client in connection with a request from, or audit by, a Supervisory Authority or other competent authority, or in connection with a request or complaint from Data Subjects whose Personal Data are being Processed by EY. EY shall also assist Client in complying with applicable Data Protection Laws that may require Client to conduct data protection impact assessments, and to consult with Supervisory Authorities.
9. EY shall not outsource the Processing of Personal Data in whole or in part to a subcontractor without the prior written authorization of the Client. Client shall be entitled to refuse such authorization without giving a reason or to make its authorization subject to further conditions. EY's subcontractor must also, as a minimum, comply with contractual provisions similar to this Data Processing Agreement. In case the subcontractor fails to fulfil its data protection obligations under such contract with EY, EY will remain fully liable towards the Client for the performance of the subcontractor's obligations under the outsourcing contract. By signing this Agreement, Client authorizes EY to engage EY Other Entities and EY Persons in the Processing of Personal Data.
10. (a) EY may Process Personal Data in countries outside of Nigeria or the EEA provided that EY complies with the provisions of Part VIII of the NDPA ("Cross-Border Transfer of Personal Data") and Chapter V of the Regulation ("Transfers of personal data to third countries or international organisations").
- (b) EY has implemented Processor Binding Corporate Rules ("BCRs") for transfers between the various EY Firms. They are published on its website: www.ey.com/bcr. Client agrees and accepts that Personal Data Processed by EY pursuant to this Agreement may be transferred outside of Nigeria or the EEA on the basis of the BCRs. Client agrees that it is responsible to inform data subjects about the existence of processors based outside of Nigeria or the EU and to provide a link to EY's BCRs & this Data Processing Agreement (without any sensitive/confidential information) as well that if in case a transfer involves special categories of Personal Data, data subjects have been informed or will be informed before such transfer takes place.
11. The duration of the Processing will be governed by the Statement of Work ("SoW"). After the end of the provision of services relating to Processing, EY shall, at the choice of the Client, delete or return all Personal Data to the Client and delete all copies unless EY has a statutory or professional duty to store the Personal Data beyond termination of the SoW. The Parties acknowledge that EY may keep data retained for back-up purposes which EY may keep pursuant to its document retention and business continuity policies, provided that the security and secrecy provisions as included in this Data Processing Agreement continue to apply to them.

12. In the event of any conflict between a provision of this Agreement and a provision in another agreement between the Parties (including the SoW), the relevant provision in this Data Processing Agreement shall prevail.
13. This Agreement shall be amended in joint consultation between Client and EY where such is required pursuant to (future) legislation and regulations.
14. All legal relationships between Client and EY shall be governed by the laws of the Federal Republic of Nigeria.
15. The competent court in Nigeria has exclusive jurisdiction to hear all disputes which may arise between Client and EY ensuing from or in connection with this Data Processing Agreement or its implementation.
16. This Data Processing Agreement is subject to the limitations, indemnity and dispute resolution clauses in the Non-Audit General Terms and Conditions.

EY IT security schedule:

1. As part of the Services, EY agrees that it shall take all reasonably necessary steps and security precautions in accordance with commercially reasonable industry standards to minimize the risk of unauthorised access to, or sabotage of, the Client Information that is provided to EY to perform the Services.
2. EY will maintain and keep updated a Global IT Security Policy aligned to ISO 27001/2 that contains procedures designed to protect the security of Client Information in electronic form while under EY's possession, custody or control, that cover the areas below.

Information security policy:

3. EY shall develop, administer and maintain appropriate policies that protect EY's information systems from loss, damage, unauthorised disclosure or disruption of business, which includes the physical protection and logical segmentation of information systems including any Client Information, provided to EY to perform the Services, to be processed or transmitted.

Organisation of information security:

4. EY shall retain suitably qualified personnel, with clearly defined roles and responsibilities, within their information security organisation, to coordinate the implementation of security for the EY organisation.
5. EY shall determine requirements for sensitivity, protection and disclosure of information, and shall review such requirements annually.
6. EY shall effectively segregate duties, roles and responsibilities, to prevent unauthorised use of EY's business critical information assets.

Asset management:

7. EY shall maintain procedures to identify, control and maintain the ownership and security classification of key EY assets and Client Information held within the EY data centre infrastructure.
8. EY shall create policies defining the acceptable use of information and assets and promulgate these to all appropriate users of EY assets and information.

Human Resources security:

9. EY shall develop and implement policies and procedures that ensure the suitability of EY personnel and third-parties in relation to their roles and responsibilities.
10. EY shall provide appropriate awareness training and access to information, so that EY users and third-parties understand their IT Security responsibilities, in relation to Client Information.
11. EY shall ensure that all necessary procedures are performed for EY employees upon change of role, end of engagement, termination of employment, contract or agreement.

Physical and environmental security:

12. EY shall institute effective physical and environmental controls and safeguards, to preserve the integrity and availability of EY information systems and the Client Information contained thereon, whether they are in use at EY facilities, client sites or third-party locations.
13. EY shall provide measures for assuring and maintain the supporting infrastructure of information and information systems, including the physical protection of any equipment associated with any client engagement.

Communications and operations security:

14. EY shall define a suitable set of processes and procedures for the effective management of the communications network systems and information processing facilities which contain Client Information including:
- a) Change management;
 - b) Third-party service delivery management;
 - c) System planning and acceptance;
 - d) Protection against malicious code;
 - e) Regular backup of information and software;
 - f) Network security management including secure remote access, intrusion detection, network protocol and perimeter protection, countermeasures designed to detect unauthorised activity, storage and handling of digital media;
 - g) Exchange of information via mutually agreed methods and appropriate use of encryption;
 - h) Monitoring and audit logging;
 - i) Decommissioning of information systems;
 - j) Capacity management of business-critical systems and components;
 - k) Development and pre-production environments; and
 - l) Procedures for management, handling and storage of media.

Access control:

15. EY shall implement procedures designed to control access to information systems and Client Information, including providing user identification and access controls.
16. EY shall seek to limit access to Client Information to authorised users on a least privilege basis, granting access based upon business requirements.

Information systems acquisition, development and maintenance:

17. With regard to the specification, acquisition, development and maintenance of information systems, including both those procured from external vendors and those internally produced, EY shall determine the necessary confidentiality, integrity and availability requirements, and continue to review these against an enduring risk profile through the usage lifecycle.
18. EY shall define and maintain principles for the appropriate security aspects of any software development lifecycle.
19. EY shall identify and evaluate notified technical vulnerabilities and threats and shall deploy an effective patch and vulnerability management policy designed to remediate EY's information systems where necessary.

Information security incident management:

20. EY shall prepare and maintain an incident response plan and program, containing procedures and directions to follow in the event of an incident related to the security of EY's computing infrastructure, documenting the necessary steps and channels of communication to be followed.
21. EY shall ensure that the directions incorporate appropriate procedures for notifying our Clients, and other necessary stakeholders, promptly if any security incident is determined to have caused a security breach involving Client Information.

Information security aspects of business continuity management:

- 22. EY shall develop and maintain business continuity impact analyses and disaster recovery plans, designed to maintain EY's delivery of the Services with minimal interruption. Each plan shall detail measures to support the effective restoration of services, to resume operations as soon as possible after an emergency.
- 23. EY shall conduct periodic testing on the firm's most critical business applications, to provide assurance that they are readily available in the event of a declared disaster.
- 24. EY shall ensure that backups are taken offsite, to support the recoverability of EY systems in the event of a disaster.

Compliance:

- 25. EY shall provide assurance that EY information systems comply with security requirements and policies, applicable laws and regulatory requirements.
- 26. EY shall implement appropriate audit controls, limiting access to tools and systems thus preventing misuse or compromise, and ensuring that audits comply with the EY Global Information Security Policy: Code of Connection.

Cryptographic controls:

- 27. EY shall develop and implement a policy on the use of cryptographic controls for the enduring protection, confidentiality and preservation of integrity of sensitive information and assets.

Supplier relationships:

- 28. EY shall establish and maintain formal agreements with infrastructure vendors involved in the service delivery management of EY's information systems, incorporating where appropriate the necessary security controls, policies and service level agreements.

APPENDIX 2 – CLIENT AFFILIATE LIST

List of Client-affiliated entities
(as of the Effective Date)